Spring, 2005 Volume VII, Issue 3

The Mountainside

Coolfont Mountainside Association

P.O. Box 418, Berkeley Springs, WV 25411
www.coolfontmountainside.org

CMA Updates From the President

by Jim Thompson

I hope all of you survived the winter chill and snow! We are now three fourths of the way through this year's Board of Directors term. There have been a number of accomplishments over the last nime months. With the help of many of you on our Firewise Day in November,



CMA Board headed by Jim Thompson our President.

CMA has been recognized as West Virginia's first Firewise Community by the national Firewise Communities USA. We held an official recognition ceremony on April 16th that a number of you attended. We are continuing dialogue with Coolfont Resort regarding CMA and CRI areas of mutual interest. I briefed the CRI Board in November on the status and concerns of CMA and we have stayed in close contact with CRI leadership.

Carroll Yingling has been leading the Development Task Force developing CMA goals and issues with CRI prospective development. We have re-established the standing nominating committee required by our Bylaws chaired by Dick Lehman with three other members and a Board liaison (Carroll Yingling). There have also been some emergent repairs required like the water line in the A-section and wiring for the Barn—as those of you who attended the "blackout" in the Barn on Firewise Day know.

As we swing into spring and the blooming of the valley, CMA activities are picking up. We held a Special Membership meeting at Treetop on the morning of April 16th. We discussed a number of

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The Twenty-Four Hours of CMA

by Jim Thompson

On May 12-13 we completed our "24 Hours of CMA" demonstrating persistence and stamina in a 24—hour closure of Herbert Quick Drive. We do this periodically to provide evidence that our CMA road system is in fact private and under our control, so that no future developer can claim the right to extend our road system to any new development. Special thanks go out to Chuck Braun, Stan and Rosemary Bigelow,, Jackson and Sandy Bain, Elmer Broxson, Jean and Bob Cohen, and Carroll and Phyllis Yingling for "manning the ropes" and identifying those who wanted to enter CMA roads!





CMA Calendar Events!

May 27th

Pool Opens—**1pm**

May 28-30

Berkeley Springs Art Tour

June 11th

Board: CMA Office-**10am**

Potluck: TBA

6:30pm

July 16th

Annual Meeting Audubon Room at Treetops **10am**

Lunch **1pm**

Dinner: The Barn

6:30pm

Host a potluck dinner and meet your neighbors!

Development in Morgan County

by Jim Thompson

Did you know that Morgan County is one of the fastest growing counties in the state of West Virginia? In fact, over half the permits issued for new construction in the entire state last year were in Jefferson, Berkeley and Morgan counties. In an effort to plan for the future growth, the Morgan County Planning Commission on May 17th at the Cacapon State Park Conference Center held the first of a series of meetings with the public regarding development of a revised Morgan County Comprehensive Plan. This will be the first update of the plan since 1985 and they expect to complete it by late summer. A number of citizens from throughout the county attended the meeting, including Elmer Broxson, Sandy Bain and myself from CMA.



CMA's vision now for the future.
This

Jack Sorenen, head of the Planning Commission, and Alma Gorse, the Morgan County Planner, recruited Dave Clark from the Canaan Valley Institute to facilitate the presentations and discussion period that followed. The plan has 13 topic areas including housing, public services, community design, transportation, infrastructure, economic development and tourism. We were briefed on growth statistics. A number of maps with county land use, topography, geology and other features were on display and soon should be posted on the internet at http://www.morgancountyeda.com/gov/ under "Planning Commission". Joe Hankins from the Jefferson County Public Service district (PSD) gave a very interesting talk on water and wastewater issues. A key point he made was that communities can no longer rely on lack of infrastructure such as sewage treatment to maintain slower growth because technology now exists that can allow developers to provide their own wastewater treatment facilities.



Not this!

Another key issue is how a Comprehensive Plan could be enforced without zoning regulations in the county. (Zoning is still a touchy subject in the county!) It may be possible to enact ordinances that would require developers to follow the Plan. Much more discussion is required in this area. Several people who attended were very interested in having continued involvement by the community at a more detailed level. The Planning Commission was reluctant to facilitate a large number of meetings, but was willing to accept consolidated input from the community.

The commission has developed a questionnaire for individuals and communities to fill out and return. We will post this on the CMA website in the near future. There will be another meeting next week to cover the remaining topics from the plan. We will have our Development Task Force under Carroll Yingling review and provide CMA input. CMA needs to stay engaged in the development of the new Comprehensive Plan. If anyone is interested in and/or experienced with growth planning issues please contact Carroll Yingling or me on how to get involved.

Evolution of the Management of the Water and Wastewater Industry

by Jean Cohen

Historically, water services in many US cities were delivered by private providers (e.g., in Boston, New York, and Philadelphia). As these and other cities grew; however, water services came to be a core function of local governments. After World War II, when Congress exempted interest payments on municipal bonds from the federal income tax, the trend for municipal ownership increased further.

Today, the water industry is highly diversified. There is still evidence of private ownership and municipal ownership, but there is an emerging interest in public-private partnerships in water management.

As of 1999, there were nearly 54,000 community drinking water systems in the U.S. providing services to approximately 250 million people; the vast majority serving small populations.

A literature search conducted on the Internet reveals while there are numerous community water systems, there are few that resemble that at Coolfont. Of those, there is no indication of a concern for ecology or the environment. Coolfont's method for distribution of drinking water and the disposal of solid waste is unique and possibly worthy of replication.



Preserve our water

Hot Topic—Morgan County's Comprehensive Development Plan by Cindy Van Meter

CMA is not the only local community concerned about the impact that increased development could have on its water and sewer systems,, roads, and overall environment. Other communities and residents are concerned as development increases throughout Morgan County, as supported by recent articles in the Morgan Messenger. If you don't subscribe to the Morgan Messenger and would like more information about the County's growth, activities, etc., go to the following website: ***http://www.morganmessenger.com.***

The Morgan County Planning Commission is updating Morgan County's Comprehensive Plan in response to the State of West Virginia's new county and municipal planning guidelines and requirements. Although Morgan County is allowed to keep its 1985 comprehensive plan for another 10 years, it has decided to update its plan and appointed a three member subcommittee: Jack Soronen, Dick Harvey, and Daryl Cowles to ask community groups and individuals to consider what Morgan County could and should look like in the future.



Land use, recreation,

As part of the effort, the planning commission is holding a series of three planned public meetings. Local citizens representing various organizations and various industries will be available to answer questions. Dates, times, locations, guest speakers and topics are as follows:

May 17, 2005: see page 2

May 25, 2005 : Topics: land use/ renewal/rural redevelopment, recreation, histories preservation and finance.

June 9, 2005 (6:00 p.m.—8 p.m.) at the PawPaw Senior Center

Topics: Some but not all: land use, housing, transportation, public services, rural, recreation, preferred development areas and renewal and redevelopment.

CMA members are encouraged to convey their concerns to the county by completing the enclosed questionnaire and submitting it to the Morgan County Planning Office, PO Box 28, Berkeley Springs, WV 25411. When responding to line #3 of the questionnaire, checkmark the "Fish Hatchery/Cacapon State Park" as the closet landmark to CMA.

Special Membership Meeting: April 16, 2005 by Cindy Van Meter

On April 16, approximately 30 CMA members attended and information packed "Special Membership Meeting" to discuss the status of CRI Redevelopment plans and what they mean to CMA. Clearly, our community has many questions; some have been answered, others still need to be answered and some others may yet be asked. As one attendee stated, "the meeting was far more informative than he anticipated, and it will take some time to absorb and understand everything."

Vice President Carroll Yingling presented an overview of CMA's Core Values, and Roads, Chairperson, Elmer Broxson, discussed key CMA issues of concern, and "Ties That Bind" (the resorts legal obligations to CMA). President Jim Thompson discussed CMA's Covenants and Restrictions and the need to update them. The meeting was followed by an enjoyable lunch arranged by CMA's Social Chairperson Hallie Kerr.

"Ties That Bind"



Below and on the following page are CMA Core Values, Issues of Concern and "Ties That Bind". Questions or additional information please notify Jim Thompson, Carroll Yingling, or Elmer Broxson.

CMA Core Values Statement (Developed by CMA Development Task Force and Chaired by Carroll Yingling)

"Promote the health, welfare, safety, and recreational interests of its residents by...

- Preserving the quality and abundance of the water supply;
- Enhancing a natural environment and habitat that encourages and protects all of life;
- Sustaining and continuing to build a nurturing community;
- Promoting and observing fire safety and prevention;
- Protecting the security of the community;
- Maintaining the Community's infrastructure (roads, water and sewer systems);
- Continuing to provide recreational facilities to our members, and;
- Affirming our commitment of being good citizens of Morgan County.

Key Issues of Concern

1. The Aquifer—care and conservation of it.
2. The impact of increased, development density on CMA and the surrounding area:
   - Water—Aquifer
   - Sewage
   - Roads
   - Natural habitat and the Environment
   - Fire Safety and Fire Hazard
   - Noise and air pollution
   - Quality of life
3. County Capabilities to service future development:
   - Fire
   - Police
   - Emergency Services



4. The establishment of a Standard Contract with our Homeowners/ Renters, consistent with CMA Standards and values, and consistent with any future contracts with other Home Owner Associations.
5. Erosion Issues
6. Preservation of CMA's scenic easements

Ties That Bind

- CMA's covenants on the Manor House and the Woodland Lodge
- Restriction on the Manor House Tennis Courts
- CRI Treatment of sewage effluent for lots D1, D6 and D7
- Scenic Easements—SE corner of pasture, SW corner of Pasture, Salmon Well
- CMA Private Roads
- CRI White Trail—right-of-way through CMA-owned land
- Source Water Protection Area—Salmon Well includes CDC land—North Well includes Ashelman land
- CDC Resposibility for remedying T-section water leak
- CDC liability for viability of R Section turnaround

Swimming Season is Almost Here by Marie Barrett

Get out the sun block and romance novels. Although the evenings may still be a bit nippy CMA's Recreation Committee is busily planning for our swimming season. The pool will open Friday, May 27th at 1 PM. (Weather permitting)

All CMA members, families, and friends were invited to the pool cleanup and beautification on May 14th, led again by Gordon and Mary Kay Cloney. Activities began at 10 AM. With their shovels, rakes and garden gloves in hand CMA members worked around the pool area. We planted, mulched, raked and watered. Those of us who do not have a green thumb picked up trash and otherwise provided moral support. Lunch was provided for the workers at 1 pm in the CMA office.

You should receive your swim passes and pool schedule in the mail by mid May. Each family will receive two passes. The passes can be used by anyone in the family, and a family member with a pass may bring guests. If you want passes for unaccompanied guests or renters, you can purchase seasonal or per-swim passes. Details will be in the swim pass mailing.

We have the same lifeguards as we did last year—Rebecca and Meladie. The pool will be closed ten days in July



(July 8 through 17) because the lifeguards will be unavailable during that time. So plan your vacation accordingly.

If you missed the spring cleanup, plan to attend the fall cleanup.

Berkeley Springs Studio Tour & Art Sale by Lois Copeland

Berkeley Springs's annual spring Studio Tour and Art Sale takes place Memorial Day Weekend, May 28, 29 and 30th 10am-5pm. Come and see why Berkeley Springs in beautiful Morgan County has been declared "America's #2 Arts Destination" *by American Style* magazine. The tour has twenty-three participating artists at eighteen locations around Berkeley Springs.

An opening reception will be held at ***The Mallory Gallery*** in the old train depot on Friday May 27, 6:30-9pm. Many of our artists will be in attendance.

Our own Rosemary Bigelow will be showing her beautiful collection **My Grandmther's Lace** and Richard Kaufman's, Asian paintings in his **Magic Mountain Studios.**

For more information see:

http://

www.BerkeleySpringsStudioTour.com

or call the tour office 304-258-3541. Also look for the Yellow and Blue Studio Tour Directions Signs.



*Pillows from Rosemary Bigelow's **My Grandmother's Lace** collection!*

Out and About in Berkeley Springs

by Lois Copeland

A visit to the mountainside can be as relaxing as sitting on your deck and listening to the birds while reading your favorite novel or taking in all that Berkeley Springs has to offer.

On Sundays' from May through-October 10am to 2pm a visit to the Farmers Market is a must. There you find flowers, vegetables and herb plants. and locally grown fruits and vegetables In addition you will find homemade peach, apple and pear butter.

For those with a sweet tooth there are homemade baked goods, also eggs and prepared foods. Fertile Plains Custom Pork is new this year. They sell pulled pork sandwiches, chips and drinks. They also sell the pulled pork in one and two pound packages. They make delicious quick dinners.



Sunday in Berkeley Springs—The Farmers Market

No weekend would be complete without a visit to the historic '40s Star Theatre to see a first run filmThursday through Sunday during the summer. You can purchase popcorn from the 1947 popcorn machine and with fifty cents more sit in the overstuffed couches.

At The Ice House Artists Co-Op Gallery you'll find creative art and fine crafts.. They sponsor art showings from local and regional artists throughout the year.

The Nature Niche recently opened with a bright assortment of birding and other nature supplies. The owners are always there with advice on nature's wonders. Visit the Manor House on Saturday evenings and listen to classical music

Some, but not all listed are Tari's Café and Gallery, Inspirations, the Antique Mall, Youbawtwhat, Mountain Laurel Gallery, Berkeley Springs State Park, The Written Word, Bath Bookworks, The Bath House, Heath Studio Gallery and The Mollary Gallery at the depot.

Questions Answered...Another Raised

by Cindy van Meter

It is apparent when reading accompanying articles entitled "Development in Morgan County" and "Hot—Morgan County's Comprehensive Development Plan", that the County is planning and preparing for major growth and redevelopment. Like any other community, CMA needs to anticipate, study, understand and plan for the impact future growth could have on the quality and sustainability of CMA's water and sewer systems, the environment, security, county services and more. The big question is, "How can a small, recreational community with limited manpower and financial resources continue to effectively protect the interests of its full-time and part-time residents as the County begins to grow?"

Two answers that come to mind are community involvement through volunteerism and mobilization of communities within Morgan County. There is more strength in numbers! CMA's 7 member Board of Directors has dedicated individuals who have been working as *committees of 'one'* for many years. The committees are finance, security, water/sewer system and roads. These committees are managing day-to-day responsibilities, addressing outstanding CMA/CDC issues, anticipating and planning for the impact of County growth and CRI redevelopment on CMA's environment and infrastructure.

We got our hands dirty and the results were beautiful!



I believe CMA has many talented people with strong interests and/or skills that would be valuable to all the committees and our community.

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From the President (continued)

by Jim Thompson

Issues including nominations for the July elections (we have enough candidates now!), status of Coolfont resort redevelopment, the CMA Task Force and issues between CRI, CDC and CMA, as well as potential changes to the CMA Covenants and Restrictions. The annual pool clean-up was held on May 14th and the Trails Committee under Barbara Meeker will be getting started on creating a trail plan for CMA.

We are looking for volunteers to host open (especially new) houses on Sunday July 17th (the day after the Annual Meeting) as well as the continuing need for committee members. We are still looking for comments on what you would like to see on the CMA website.

Hope to see you on the Mountainside soon!



Fun on the mountainside at a Potluck dinner!

Coolfont Mountainside Association

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We're on the web

www.coolfontmountainside.org

They are our neighbors, treat them well!



Congratulations to Bob and Jean Cohen on the birth of two grandchildren, Carl and Morgan.

Congratulations to Gordy and Mary Kay on the birth of their first grandchild, a boy, Alexander.

A speedy get well to Dot Kagen following a knee replacement. We hope she will be back on the mountainside soon!

Congratulations to Hallie Kerr on the adoption of her new dog Sophie. She is adorable. We hope Babe is not too jealous.

I think Elias and Mary Ellen Tamari should be voted the best grandparents for all the help to their children in the care of their triplet grandchildren! Way to go.

We were so sorry to hear about Joe and Barbara Auslander house fire in Washington, DC. We are glad they are safe. We wish them well.

Questions Answered...Another Raised

by Cindy Van Meter

-(Continued from page 5)

These interests and skills may be in finance or accounting, community planning and development, civil engineering, public relations, law, education, organizational practices, public speaking, writing and more.

Interested volunteers can contact any of the following:

Jim Thompson—e-mail: JanNThompson@comcast.net—Phone: 703-684-8465

Carroll Yingling—e-mail: lcyir8@aol.com— Phone: 410-889-3185

Cindy Van Meter—e-mail-cindyvm@yahoo.com—Phone: 703-532-6862

Elmer Broxson—Phone 202-333-8872

If you are unable to volunteer on an ongoing basis, if you are interested but uncertain about how you could contribute, or you are available on an occasional basis, please notify me. You may be able to recommend resources or identify issues that would be helpful to the committees and the Board. I will take your information, consolidate it and forward it to the appropriate committee (s).



Volunteerism at its best, Pool Beautification Day